

PARENTAL AND MEDICAL PAID LEAVE

As of July 1, 2022, Loudoun County Public Schools shall provide a paid leave program to eligible employees who are absent from work due to the birth, adoption, foster care or surrogacy of a child and for eligible employees, who, due to non-work-related illness or injury for themselves or a spouse, child or parent, are unable to report to work.

A. Parental Paid Leave. Employees will be considered eligible for Parental Paid Leave if they have been:

1. Consecutively employed by LCPS in a benefits-eligible position for a minimum of one (1) calendar year (*i.e.*, 365 days) immediately preceding the absence date.

2. Approved for Family & Medical Leave (FMLA) or School Board Policy 7716 or 7722.

3. Provided LCPS employees meet the above eligibility requirements, they may seek 6 weeks (or a maximum of 30 working days) of paid leave for any absence from work, due to the birth, adoption, foster care or surrogacy of their child, whether they are the birthing or non-birthing parent. This leave may be used one time during a 12-month period, calculated on a rolling backward calendar basis (*i.e.*, each time an employee requests additional parental paid leave, LCPS uses that date and measures 12 months back from it). If the parent is the birthing parent, they must apply for and be approved for short-term disability. This paid leave will run concurrently with any other employer-paid leave options (*i.e.*, short-term disability), up to the 6-week maximum.

4. Parental paid leave shall begin as of the event date for the eligible birthing or non-birthing parent. Parental paid leave must be used consecutively or intermittently in the 12 months beginning with the event date for the non-birthing parent. This leave may not be applied retroactively more than 30 days. Parental paid leave past 6 weeks is available only if the employee is eligible for sick, personal or annual leave and elects to use such paid leave. If no leave is available, the balance of any leave period will be leave without pay. An employee is eligible for this leave once a year, calculated on a rolling backward calendar basis.

B. Medical Paid Leave. Employees will be considered eligible for Medical Paid Leave if they have been:

1. Consecutively employed by LCPS in a benefits-eligible position for a minimum of one (1) calendar year (*i.e.*, 365 days) immediately preceding the absence date.

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2. Absent for a total of 30-scheduled working days, consecutively or intermittently, for a serious health condition for themselves or a spouse, child or parent before applying for this leave.

3. Approved for FMLA or School Board Policy 7716 or 7722.

4. Eligible LCPS employees may seek 6 weeks (or a maximum of 30-scheduled working days) of paid leave for absences from work due to a non-work-related serious illness or injury for themselves or a spouse, child or parent.

5. An employee who is absent due to their own serious health condition must apply for short-term disability and be approved for job and benefit protections under LCPS Policy 7716 or 7722 to run concurrently with this benefit. This paid leave may be consecutive or intermittent.

6. Paid leave prior to and past the eligibility period of 6 weeks (or 30-scheduled working days) is available only if the employee is eligible for sick, personal or annual leave and elects to use such paid leave. If no leave is available, the balance of the leave period will be leave without pay. An employee is eligible for this leave once a year, calculated on a rolling backward calendar basis.

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Cross Ref.: Policy [7715](#) - Parental and Medical Paid Leave